

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #
Date of filing:

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RASHEEN SCOTT,

Plaintiff designates Bronx
County as the place of trial

Plaintiff,

Basis of the venue is the Locus
of Occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER ELVIS
DURAN and JOHN DOES-Police Officers as yet
unidentified,

SUMMONS

Plaintiff resides at
1051 College Avenue, Apt. # 3A
Bronx, New York 10456

Defendants.

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County of Bronx

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER ELVIS DURAN
Tax ID # 946965
c/o New York City Police Department-
PSA (Police Service Area) 7
737Melrose Avenue
Bronx, New York 10451

Dated: Brooklyn, New York
August 29, 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
RASHEEN SCOTT,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER ELVIS
DURAN and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF RASHEEN SCOTT**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on November 30, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on March 7, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiff was held.

6. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK employed POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, RASHEEN SCOTT, was lawfully present at or about the premises known as 765 Courtland Avenue, County of Bronx, City and State of New York.

8. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, RASHEEN SCOTT, was assaulted and battered by defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, RASHEEN SCOTT, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental

shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, RASHEEN SCOTT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF RASHEEN SCOTT**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the POLICE OFFICER POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, RASHEEN SCOTT.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, RASHEEN SCOTT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF RASHEEN SCOTT**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, RASHEEN SCOTT.

20. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, RASHEEN SCOTT, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

22. By the reason of the foregoing, the plaintiff, RASHEEN SCOTT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF RASHEEN SCOTT**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That the defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, RASHEEN SCOTT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF RASHEEN SCOTT**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, RASHEEN SCOTT.

30. That as a result of said intentional and negligent acts, the plaintiff, RASHEEN SCOTT, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, RASHEEN SCOTT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF RASHEEN SCOTT**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on October 12, 2016, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities, loss of earnings and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, RASHEEN SCOTT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF RASHEEN SCOTT**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, RASHEEN SCOTT, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

39. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, RASHEEN SCOTT, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

40. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

41. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

42. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendant, THE CITY OF NEW YORK.

43. That the defendants' actions were not privileged or immune.

44. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

45. By the reason of the foregoing, the plaintiff, RASHEEN SCOTT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF RASHEEN SCOTT**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER ELVIS DURAN and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

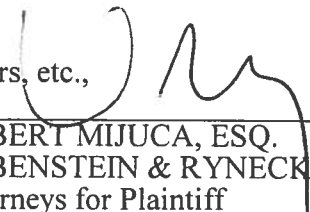
49. By the reason of the foregoing, the plaintiff, RASHEEN SCOTT sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, RASHEEN SCOTT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eight** Cause of Action;

together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
August 29, 2017

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
RASHEEN SCOTT
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 16RS10-12

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

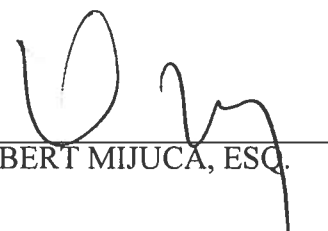
I am a Partner at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
August 29, 2017



ROBERT MIJUCA, ESQ.